

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher DeNitto	Team: Team # 2	CCRB Case #: 200805105	☒ Force ☒ Abuse	☒ Discourt. ☐ O.L.	☐ U.S. ☒ Injury
Incident Date(s) Wednesday, 04/09/2008 5:13 PM	Location of Incident: § 87(2)(b) and inside the 83rd Precinct stationhouse	Precinct: 83	18 Mo. SOL 10/9/2009	EO SOL 10/9/2009	
Date/Time CV Reported Wed, 04/09/2008 6:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 04/09/2008 6:28 PM		

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Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Tiernan	25728	933411	083 PCT
2. Officers			083 PCT
3. POM Martin Haber	29395	934741	083 PCT
4. POM Peter Rubin	05057	933299	083 PCT
5. POM Angel Figueroa	15931	937818	083 PCT
6. SGT Nicholas Vandyke	02363	927819	083 PCT
7. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kenneth Dwyer	23759	923793	083 PCT
2. POF Sonia Yi	06593	939724	083 PCT
3. POF Samantha Regan	26628	933237	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Nicholas Vandyke	Abuse: Sgt. Nicholas Vandyke supervised the stop of § 87(2)(b), § 87(2)(b) and § 87(2)(b)	
B.POM Peter Rubin	Abuse: PO Peter Rubin frisked § 87(2)(b)	
C.POM Martin Haber	Abuse: PO Martin Haber frisked § 87(2)(b)	
D.POM Brian Tiernan	Force: PO Brian Tiernan used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
E. An officer	Force: An officer used physical force against § 87(2)(b)	
F. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	
G.POM Martin Haber	Force: PO Martin Haber used physical force against § 87(2)(b)	
H.POM Angel Figueroa	Force: PO Angel Figueroa used physical force against § 87(2)(b)	
I.POM Angel Figueroa	Force: PO Angel Figueroa struck § 87(2)(b) with handcuffs.	
J.POM Angel Figueroa	Discourtesy: PO Angel Figueroa spoke obscenely to § 87(2)(b)	
K.POM Angel Figueroa	Force: PO Angel Figueroa used physical force against § 87(2)(b)	
L. Officers	Force: Officers used physical force against § 87(2)(b)	
M.POM Angel Figueroa	Force: PO Angel Figueroa used physical force against § 87(2)(b)	
N. Officers	Force: Officers used physical force against § 87(2)(b)	
O. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	
P. An officer	Force: An officer struck § 87(2)(b) with a baton.	
Q.POM Angel Figueroa	Force: PO Angel Figueroa tightly handcuffed § 87(2)(b)	
R.SGT Nicholas Vandyke	Abuse: Sgt. Nicholas Vandyke supervised the strip search of § 87(2)(b)	

Case Summary

On April 10, 2008, § 87(2)(b) filed a complaint with the CCRB via phone. § 87(2)(b) did not witness the incident (encl. 2A-K).

On April 9, 2008, around 5:30 p.m., § 87(2)(b), § 87(2)(b) and § 87(2)(b) were stopped at § 87(2)(b) in Brooklyn. § 87(2)(b) was arrested § 87(2)(a) 160.50 § 87(2)(b). § 87(2)(b) and § 87(2)(b) were not arrested or issued summonses. § 87(2)(b) got involved and was subsequently arrested § 87(2)(a) 160.50 § 87(2)(b). The following allegations resulted from the officers' actions.

- **Allegation A – Abuse of Authority: Sgt. Nicholas Vandyke supervised the stop of** § 87(2)(b), § 87(2)(b) and § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation B – Abuse of Authority: PO Peter Rubin frisked** § 87(2)(b).
- **Allegation C – Abuse of Authority: PO Martin Haber frisked** § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation D – Force: PO Brian Tiernan used physical force against** § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation E – Force: An officer used physical force against** § 87(2)(b).
- **Allegation F – Abuse of Authority: An officer threatened** § 87(2)(b) with the use of force. § 87(2)(g) § 87(2)(b).
- **Allegation G – Force: PO Martin Haber used physical force against** § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation H – Force: PO Angel Figueroa used physical force against** § 87(2)(b) § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation I – Force: PO Angel Figueroa struck** § 87(2)(b) with handcuffs.
- **Allegation J – Discourtesy: PO Angel Figueroa spoke obscenely to** § 87(2)(b).
- **Allegation K – Force: PO Angel Figueroa used physical force against** § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation L – Force: Officers used physical force against** § 87(2)(b) § 87(2)(g) § 87(2)(b).
- **Allegation M – Force: PO Angel Figueroa used physical force against** § 87(2)(b) § 87(2)(g) § 87(2)(b).

- **Allegation N – Force: Officers used physical force against** § 87(2)(b)
- **Allegation O – Abuse of Authority: An officer threatened** § 87(2)(b) **with the use of force.**
- **Allegation P – Force: An officer struck** § 87(2)(b) **with a baton.** § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation Q – Force: PO Angel Figueroa tightly handcuffed** § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
- **Allegation R – Abuse of Authority: Sgt. Nicholas Vandyke authorized a strip search for** § 87(2)(b) § 87(2)(g)
§ 87(2)(g).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g).

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) *is a black male, 6'1" tall, 186lbs, age § 87(2)(b) with brown hair and brown eyes.*

CCRB Testimony

On May 7, 2008, § 87(2)(b) was interviewed at the CCRB (encl. 4A-X).

On April 9, 2008, around 5:30 p.m., § 87(2)(b), § 87(2)(b) and § 87(2)(b) were walking around § 87(2)(b) in Brooklyn when PO Brian Tiernan¹ grabbed § 87(2)(b) by his left shoulder and tried to bring him to the ground. § 87(2)(b) stiffened his body so that he would not go down. PO Tiernan “slammed” § 87(2)(b) into a gate. PO Angel Figueroa² and PO Martin Haber³ held § 87(2)(b) and § 87(2)(b) against the fence. PO Haber⁴ went inside § 87(2)(b) pockets. § 87(2)(b) did not witness what else happened with § 87(2)(b) and § 87(2)(b).

PO Tiernan held § 87(2)(b)'s arm behind his back and told him to get on the ground. § 87(2)(b) told PO Tiernan that he did not have any reason to get on the ground. PO Figueroa and PO Haber helped PO Tiernan take § 87(2)(b) to the ground. After the officers handcuffed § 87(2)(b) on the ground, one of the officers § 87(2)(b) could not see which one) punched § 87(2)(b) in the face with his forearm. A crowd formed and started yelling at the officers.

PO Tiernan and PO Haber picked § 87(2)(b) up by his arms and “slammed” him against the hood of the marked police car. § 87(2)(b) arrived and asked the officers what they were doing. § 87(2)(b)

¹ § 87(2)(b) described PO Tiernan as a white male 5'9, slim, wearing a baseball cap and a hooded sweatshirt. According to a photo of the incident, PO Tiernan was dressed in this attire. PO Tiernan also admitted to interacting with § 87(2)(b).

² § 87(2)(b) described PO Figueroa as a Hispanic male, 5'10 and bald with a mustache. PO Figueroa fits this description and admitted to the interaction.

³ § 87(2)(b) described PO Haber as a white male, stocky build, 6'2, in a blue jacket with a green armband who officers referred to as “Marty.” PO Haber fits this description.

⁴ § 87(2)(g)

§ 87(2)(b) approached and PO Figueroa pushed § 87(2)(b) in the chest two times, told her to leave, and asked her if she wanted to get arrested.

§ 87(2)(b) stood up on his own accord and told the officers to leave § 87(2)(b) alone. Officers tried to place § 87(2)(b) into the police vehicle. An officer, who § 87(2)(b) could not describe, threatened to pepper spray and taser § 87(2)(b). An officer who § 87(2)(b) could not see “rammed” him into the police vehicle. PO Haber approached and punched § 87(2)(b) it is unclear where the punch made contact with § 87(2)(b)’s body.

A black officer and a Hispanic officer drove § 87(2)(b) to the precinct. In the car, § 87(2)(b) told these officers that they were wrong. The Hispanic officer responded that § 87(2)(b) knew what he did and to stop talking before the officers “took care of him.”

At the precinct, PO Haber pushed § 87(2)(b) into the rail where he got logged in. Later, PO Haber pushed § 87(2)(b) so that § 87(2)(b)’s head hit a gate in front of him. When § 87(2)(b) was brought before the desk, the desk officer, who was a short, white bald male in plainclothes, told § 87(2)(b) to “shut the fuck up.” PO Peter Rubin⁵ and another unidentified officer strip searched § 87(2)(b) at the precinct.

EMS asked § 87(2)(b) if he wanted to go to the hospital; they also suggested that § 87(2)(b) receive stitches to his forehead. PO Haber told the EMS that § 87(2)(b) was going to be all right and that they could leave. § 87(2)(b) was not taken to the hospital. On § 87(2)(b) when § 87(2)(b) was released from police custody, he went to § 87(2)(b).

Photo array

- On October 3, 2008, § 87(2)(b) viewed a photo array, including eight filler photographs and the following officers: PO Kenneth Dwyer, PO Michele Acum, PO Peter Rubin, PO Angel Figueroa, PO Martin Haber, PO Sonia Yi, PO Brian Tiernan, and Sgt. Nicholas Vandyke. § 87(2)(b) identified Sgt. Vandyke as the officer who first stopped him. § 87(2)(b) identified two fillers as officers who were at the incident but who did not use force against him. § 87(2)(b) identified PO Rubin as an officer who spoke to him in his cell at the stationhouse, PO Figueroa as the officer who spoke with § 87(2)(b) and PO Tiernan as one of the officers who attacked § 87(2)(b) (Note that § 87(2)(b) did not mention that he witnessed the force used against § 87(2)(b) during his CCRB interview.)

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male, 6’ tall, 210lbs, age § 87(2)(b) with brown hair and brown eyes.

CCRB Testimony

On July 11, 2008, § 87(2)(b) was interviewed at the CCRB (encl. 9A-G).

§ 87(2)(b) saw officers push § 87(2)(b) into a gate, so he approached them and asked what was happening. PO Figueroa⁶ told § 87(2)(b) to mind his own business. After bringing § 87(2)(b) to the ground and handcuffing him, PO Figueroa ran towards § 87(2)(b) and pushed him, causing § 87(2)(b) to fall to the ground on his knees. PO Figueroa returned to § 87(2)(b) and a crowd formed. PO Figueroa told § 87(2)(b) that he would be arrested if he did not leave immediately. § 87(2)(b) told PO Figueroa that he was going to get his mother and daughter and then leave.

⁵ PO Rubin admitted to conducting the strip search because his name was on the command log as the officer who conducted the strip search.

⁶ PO Figueroa admitted to interacting with § 87(2)(b) and also stated that § 87(2)(b) accused him of interacting with § 87(2)(b) mother.

§ 87(2)(b) walked towards § 87(2)(b) from behind PO Figueroa. PO Figueroa did not look back, but simply pushed backwards with his right hand and pushed § 87(2)(b) back. § 87(2)(b) tried to keep her balance by holding onto the edge of a ramp at the entrance of the building; § 87(2)(b) lost her balance and fell to the ground. Once on the ground, PO Figueroa kicked either § 87(2)(b) leg or her ribs. § 87(2)(b)'s daughter, § 87(2)(b) (age § 87(2)(b)) became hysterical and started crying.

§ 87(2)(b) tried to run towards his mother but PO Figueroa grabbed him. Two other officers § 87(2)(b) was unable to describe these officers because he was in shock) held § 87(2)(b) by both of his hands while PO Figueroa punched § 87(2)(b) repeatedly in his face with his handcuffs. § 87(2)(b) estimated that PO Figueroa hit him about the face for about twenty or thirty seconds with his handcuffs more than five times.

§ 87(2)(b) told PO Figueroa that he could not give him his hands because the other officers were holding his hands. PO Figueroa responded, "I don't want to hear that shit. Give me your fucking hands." The two unidentified officers assisting PO Figueroa placed § 87(2)(b) into handcuffs and then placed him face-down on the ground. PO Figueroa kicked § 87(2)(b) in the head and another officer (who § 87(2)(b) did not see) placed his foot on the side of § 87(2)(b)'s head and pushed his face into the ground. Another officer (who § 87(2)(b) could not see) punched and kicked § 87(2)(b) in the back while he was lying on his stomach.

The officers stood § 87(2)(b) up and escorted him to a marked patrol car. As § 87(2)(b) was being escorted to the car, he observed a uniformed male officer § 87(2)(b) could not describe this officer further) lift § 87(2)(b) against the wall with his asp. Specifically this officer held his asp at both ends, pressed it against § 87(2)(b)'s neck, lifted him up and then "slammed" him onto the floor. Then this officer hit § 87(2)(b) with the asp on his leg or on his side. § 87(2)(b) did not see what happened before this officer placed the asp at § 87(2)(b)'s neck.

§ 87(2)(b) also observed PO Figueroa push § 87(2)(b); § 87(2)(b) could not articulate how PO Figueroa pushed § 87(2)(b). After being pushed to the ground, § 87(2)(b) got up and ran away. § 87(2)(b) testified that he saw an officer hit § 87(2)(b) but when questioned for the details, § 87(2)(b) stated that he did not see this.

Two uniformed officers drove § 87(2)(b) to the stationhouse. At the stationhouse, PO Figueroa said that § 87(2)(b) had hit him. § 87(2)(b) denied this and accused PO Figueroa of pushing his mother. PO Figueroa responded, "I don't give a fuck, and if your mother comes to the precinct, I'm going to lock her fucking ass up, too." When § 87(2)(b) was in the cell, he asked PO Figueroa if he could take the handcuffs off him because he was already in the cell. PO Figueroa told § 87(2)(b) to bring his hands over so that PO Figueroa could remove the handcuffs. When § 87(2)(b) complied, PO Figueroa squeezed § 87(2)(b)'s handcuffs tighter.

§ 87(2)(b) stated that he sustained multiple abrasions and lacerations to his face, around his eyes, both cheeks and his upper lip.

Victim: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) is a Hispanic female, 5'4" tall, age § 87(2)(b) with black hair and hazel eyes.

CCRB Testimony

On August 5, 2008, § 87(2)(b) was interviewed in Rector Park (encl. 10A-E).

PO Figueroa and two other police officers punched § 87(2)(b) repeatedly with closed fists. § 87(2)(b) and § 87(2)(b) tried to bring the children inside. PO Figueroa pushed § 87(2)(b) on the left side of her upper body, causing her to brush against the cement wall along the ramp and then fall to the ground. Then PO Figueroa kicked § 87(2)(b) in her lower left rib area. While he was doing this, PO Figueroa screamed for the crowd to back up. § 87(2)(b) lost consciousness for a couple seconds.

A couple of individuals lifted § 87(2)(b) up and told her that the officers had beaten up § 87(2)(b). § 87(2)(b) saw § 87(2)(b) on the ground with a bloody face. § 87(2)(b) thought that § 87(2)(b) was dead and started to scream that the police had killed her son. § 87(2)(b) told § 87(2)(b) that he was okay. § 87(2)(b) fainted.

When § 87(2)(b) woke up after fainting, she was told that § 87(2)(b) had been taken to the 83rd Precinct stationhouse. § 87(2)(b) walked to the stationhouse. Outside of the stationhouse, § 87(2)(b) was seen by EMTs. The EMTs told § 87(2)(b) that her blood pressure was high and they advised her to go to the hospital. The following day, § 87(2)(b) went to § 87(2)(b) where x-rays were taken. § 87(2)(b) sustained a fractured lower rib on her left side and bruises and scratches on her right cheek, elbow, and knee.

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic female, age § 87(2)(b)

CCRB Testimony

On May 27 and June 26, 2008, § 87(2)(b) was interviewed outside § 87(2)(b) (encl. 6A-V). § 87(2)(g)

§ 87(2)(b) observed two unidentified officers approach § 87(2)(b) and another unidentified male. PO Figueroa⁷ grabbed § 87(2)(b) by the back of his neck and pushed him into a gate; § 87(2)(b)'s face hit the gate. When § 87(2)(b) was laying face-first on the ground, one of the officers put his knee on § 87(2)(b)'s back and placed § 87(2)(b) into handcuffs. After § 87(2)(b) was placed in handcuffs on the ground, all four officers continued to “shove” and “push” § 87(2)(b).

§ 87(2)(b) stood to the side with his hands raised in the air and asked what was happening. PO Figueroa told § 87(2)(b) to “shut the fuck up.” § 87(2)(b), § 87(2)(b), and a couple other individuals approached the officers; § 87(2)(b) complained of police brutality. PO Figueroa told § 87(2)(b) to “shut the fuck up” and to get back. § 87(2)(b) refused to get back.

§ 87(2)(b) told the officers to relax because children were in the area. PO Figueroa approached § 87(2)(b) lifted her up, and “slammed” her into the cement side of the building. § 87(2)(b) shouted at PO Figueroa that § 87(2)(b) was his mother. PO Figueroa put on a pair of black gloves and put his handcuffs on over his gloves. PO Figueroa punched § 87(2)(b) with the handcuffs. § 87(2)(b) fell to the ground and PO Figueroa stepped on the side of § 87(2)(b)'s face as if he were “putting out a cigarette.”

§ 87(2)(b) pushed PO Figueroa and then § 87(2)(b) tried to pick § 87(2)(b) up. PO Figueroa grabbed the left sleeve of § 87(2)(b)'s shirt; § 87(2)(b) tried to wiggle out of his grip and PO Figueroa kicked her in the back of her left leg. § 87(2)(b) walked away. § 87(2)(b) saw PO Figueroa kick § 87(2)(b) and shouted that that was his aunt. PO

⁷ § 87(2)(b) described PO Figueroa as a bald, Hispanic male.

Figueroa picked § 87(2)(b) up by the front of his shirt and threw him backwards approximately five feet. PO Figueroa then returned to § 87(2)(b). When PO Figueroa and another officer placed § 87(2)(b) into the vehicle, the officers pushed him so that his head hit the top of the vehicle.

A male officer in uniform took out his asp, extended it and told § 87(2)(b) to back up. § 87(2)(b) is disabled and was not able to walk well. § 87(2)(b) grabbed onto a gate and asked the officers what they were doing. The male officer in uniform (who § 87(2)(b) could not describe in more detail) hit § 87(2)(b) in the mouth with his asp.

A dog, a mutt who is about two and a half feet tall, was off his leash and barked at the police. Two officers, a dark-skinned male in plainclothes and a stocky, white male in uniform, drew their guns when they saw the dog.

Photo array

- On October 3, 2008, § 87(2)(b) viewed the same photo array as § 87(2)(b) but the officers were in a different order. § 87(2)(b) identified PO Figueroa as the officer who hit § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and herself. She also identified PO Rubin as an officer who hit § 87(2)(b).

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male. § 87(2)(b) is disabled and walks with difficulty.

CCRB Testimony

On June 26, 2008, § 87(2)(b) was interviewed outside § 87(2)(b) (encl. 7A-V).

Officer placed § 87(2)(b) against a gate and handcuffed him. One of the officers kicked § 87(2)(b) in the stomach, and § 87(2)(b) fell to the ground. PO Tiernan⁸ told § 87(2)(b) to “shut the fuck up” and not to move. When § 87(2)(b) fell to the ground, PO Tiernan put his knees in § 87(2)(b)'s back and punched § 87(2)(b) repeatedly. More than fifty people gathered around § 87(2)(b). The officers started swinging at everybody. When the officers placed § 87(2)(b) into the police vehicle, they pushed the top part of his head against the top of the vehicle.

Officers told individuals to move, so § 87(2)(b) tried to walk around the group. An officer, described as a short bald Hispanic male in plainclothes, grabbed § 87(2)(b) from behind, placed both his arms around § 87(2)(b)'s stomach, lifted him up, and forcefully “threw” him to the ground. § 87(2)(b)'s brother, § 87(2)(b) § 87(2)(b) approached this officer and said that § 87(2)(b) was disabled. The officer responded, “Back up before I hit you, too.” § 87(2)(b) asked the officer what he had done wrong and the officer responded, “Shut the fuck up before I smack you.”

§ 87(2)(b) stood up and a white male in uniform with blonde/black hair took out his asp and extended it. This officer held the baton with a hand at either end and lifted § 87(2)(b) off the ground by placing the baton under § 87(2)(b)'s chin. Both of § 87(2)(b)'s feet were raised off the ground by this. § 87(2)(b) could not talk because of the way the baton was situated. This officer held § 87(2)(b) off the ground for approximately ten seconds, and then let him fall to the ground. When § 87(2)(b) hit the ground, he suffered a broken lip, which he noticed later as he was getting up.

§ 87(2)(b) described this officer as wearing a baseball cap; PO Tiernan was the only officer wearing a baseball cap that day.

As § 87(2)(b) tried to get up a second time, two female officers (a blonde white female in uniform and Chinese female with black hair in uniform) held him down while he was on his back with their boots on his neck. While this was happening, § 87(2)(b) saw § 87(2)(b) in the air and land on his buttocks. § 87(2)(b) saw PO Tiernan next to § 87(2)(b) and assumed that he had thrown § 87(2)(b) into the air. At the time, § 87(2)(b) was trying get young children out of the way. § 87(2)(b) did not land on any of the children because they ran out of the way.

PO Tiernan told the crowd to “back the fuck up.” § 87(2)(b) walked away from the police and PO Figueroa pushed her with an open hand on the side of her face. § 87(2)(b) fell backwards and hit her face on the curb. Upon seeing that his mother was pushed, § 87(2)(b) approached PO Figueroa and asked him what he was doing. PO Figueroa swung at § 87(2)(b) with an asp. § 87(2)(b) moved out of the way to avoid being hit with the asp and PO Figueroa hit § 87(2)(b) in the face with his other hand in a closed fist.

PO Figueroa held the asp in his left hand and hit § 87(2)(b) with his right hand. As § 87(2)(b) stepped back, another officer, a uniformed male, was behind him. This officer hit § 87(2)(b) on the back of his leg with an asp behind his right knee. § 87(2)(b) then fell to the ground and was immediately placed in handcuffs.

As § 87(2)(b) was escorted away, § 87(2)(b) tripped over the curb and fell face-down on the ground. § 87(2)(b) saw a video of the incident; in this video, multiple officers, including PO Figueroa, “stomped” on § 87(2)(b) s face. § 87(2)(b) was unable to provide the investigation with the name of the person who had this video. § 87(2)(b) did not get medical attention for the injuries to his lip.

Photo array

- On October 3, 2008, § 87(2)(b) viewed the same photo array § 87(2)(b) viewed, but the officers were in a different order. § 87(2)(b) identified a filler as the officer who lifted him with his baton. He also identified two fillers and PO Sonia Yi as being present at the incident. § 87(2)(b) thought that PO Angel Figueroa and PO Kenneth Dwyer may have been there. § 87(2)(b) identified PO Martin Haber as the officer who used force against § 87(2)(b) and as the officer who pushed § 87(2)(b)

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male, age § 87(2)(b)

CCRB Testimony

On June 26, 2008, § 87(2)(b) was interviewed outside of § 87(2)(b) (encl. 8A-W).

Four officers stopped and frisked § 87(2)(b), § 87(2)(b) and § 87(2)(b) against a fence. PO Figueroa pulled § 87(2)(b) around the fence to the other side of the entrance into the parking lot and pushed him into the section of fence parallel to where he was being searched. PO Figueroa told § 87(2)(b) to “shut the fuck up.” Two more officers surrounded § 87(2)(b) and hit him. Another officer stood with § 87(2)(b) and § 87(2)(b) and gave them back their IDs.

PO Figueroa used his leg to trip § 87(2)(b) and another officer pushed § 87(2)(b) and his face to the ground. People gather arounded § 87(2)(b) and the officers. While § 87(2)(b) lay on the ground, PO Tiernan put his knee in § 87(2)(b) s face and then placed § 87(2)(b) in handcuffs. § 87(2)(b) ran over. § 87(2)(b) was escorted to the police vehicle by PO Figueroa. Officers told

the crowd to back up, and then several officers took out their batons and pushed the crowd back. The officers held their batons by either end and pushed at chest level.

PO Figueroa did not allow § 87(2)(b) a chance to back up, but he took out his baton and, holding both ends, pushed her in the chest. § 87(2)(b) fell backwards; she hit the cement wall next to the ramp to the entrance to § 87(2)(b). § 87(2)(b) told PO Figueroa that § 87(2)(b) was his mother. PO Figueroa put his gloves on, put his hand through his handcuff, and hit § 87(2)(b) in his face with his handcuffs.

§ 87(2)(b) saw PO Figueroa hitting § 87(2)(b) and asked why he was doing that. The officers told everyone to back up, but because § 87(2)(b) is disabled, he could not back up very quickly. Grabbing both ends of his baton, an officer pushed the baton against § 87(2)(b)'s chest, lifted § 87(2)(b) off the ground, and flung him backwards. § 87(2)(b) fell to the ground and landed on his back because he could not keep his balance. When § 87(2)(b) stood up, the officer told him to back up or he would hit him again.

Officers told individuals to get back. § 87(2)(b) did not get back fast enough and PO Figueroa hit her in the leg. § 87(2)(b) asked why PO Figueroa had hit § 87(2)(b) and the officer told him to get back. PO Figueroa then lifted § 87(2)(b) up and “slammed” him to the ground. § 87(2)(b) landed on his left buttocks.

When § 87(2)(b) was on the ground, a dog was running loose around the backyard. Two officers were scared; they drew their guns and told people to grab it or else they would shoot it.

Photo array

- On October 3, 2008, § 87(2)(b) viewed the same photo array § 87(2)(b) viewed, but the officers were in a different order. § 87(2)(b) identified PO Figueroa as the officer who hit § 87(2)(b) with the cuffs in the face, as the officer who kicked § 87(2)(b) in the back of her leg, as the officer who had § 87(2)(b) with his face on the ground, and as the officer who pushed § 87(2)(b). § 87(2)(b) identified PO Haber and PO Dwyer as the officers who had their guns out. PO Yi was present but did not do anything. Sgt. Vandyke was one of the officers who stopped § 87(2)(b) and who picked § 87(2)(b) up and hit him against the police car. PO Rubin was one of the officers who transported § 87(2)(b) and § 87(2)(b) to the stationhouse.

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a black female, 5'9" tall, 213lbs, age § 87(2)(b) with blonde hair and brown eyes.

CCRB Statement

On May 7, 2008, § 87(2)(b) was interviewed at the CCRB (encl. 3A-V).

§ 87(2)(b) ran outside and saw about three officers around § 87(2)(b) who was laying face-down on the ground. § 87(2)(b) asked the officer why § 87(2)(b) was under arrest and the officers told her to go to the 83rd Precinct. Officers continued to “grind” § 87(2)(b)'s face against the concrete. At some point the officers slammed § 87(2)(b) against a gate. § 87(2)(b) was about a foot away from the officers and one of the officers told her to move back and pushed her back. The officers lifted § 87(2)(b) up and slammed his head against the police vehicle.

PO Haber and PO Rubin, both identified via investigation, were frisking § 87(2)(b) and § 87(2)(b) respectively. At one point, § 87(2)(b) asked all of the officers for their names but received no response. The question was directed at all of the officers present.

§ 87(2)(b) approached and five officers ran after him. PO Figueroa put his black gloves on, put his handcuffs over the gloves and punched § 87(2)(b) in the face. § 87(2)(b) said “police brutality” and PO Figueroa threw her to the ground resulting in a broken rib. An officer threw § 87(2)(b)s § 87(2)(b) daughter to the side of the yard. Officers also threw § 87(2)(b) to the side.

Photo array

- On October 3, 2008, § 87(2)(b) viewed the same photo array as § 87(2)(b) but the officers were in a different order. § 87(2)(b) stated that PO Rubin was one of the officers who held § 87(2)(b) against the gate, and PO Figueroa was the officer who told her to go to the precinct to find out what else was happening. § 87(2)(b) also stated that PO Figueroa pushed her in the chest to prevent her from stopping the other officers from assaulting § 87(2)(b)

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic female, age § 87(2)(b)

CCRB Testimony

On May 27, 2008, § 87(2)(b) was interviewed outside § 87(2)(b) (encl. 5A-W).

An officer pulled § 87(2)(b) to the ground. § 87(2)(b) tried to get up, but the officers pulled him to the ground and held him down. An officer put his knee into § 87(2)(b)s back, pushed the side of his face into the ground and sat him up. Additional units arrived. The officers escorted § 87(2)(b) to a patrol car. § 87(2)(b) struggled and resisted going into the car. One of the officers pushed the side of § 87(2)(b)s head into the top of the car.

The crowd approached the officers. The officers pulled out their badges and an officer said, “Back the fuck up. You need to go over there and mind your business.” The crowd backed away. An officer pushed numerous members of the crowd back, including § 87(2)(b). § 87(2)(b) asked what was going on, and the officer told her to “get the fuck back” and pushed § 87(2)(b) in the chest with both his hands. § 87(2)(b) fell backwards. Her head hit the concrete wall, her knee hit the ground, and her side hit the side of the concrete wall.

§ 87(2)(b) approached and asked what was happening. PO Figueroa approached § 87(2)(b) with his fist raised in § 87(2)(b)s face. PO Figueroa said, “That’s it. Get the fucking handcuffs out.” § 87(2)(b) backed away. People in the crowd told § 87(2)(b) to calm down. The officers brought § 87(2)(b) to the ground, but § 87(2)(b) could not articulate how this happened. One officer punched § 87(2)(b) in his face and another officer used his asp against § 87(2)(b) but § 87(2)(b) could not articulate how the officer did this. A plainclothes officer ran up and hit § 87(2)(b) with his handcuffs. Another officer hit § 87(2)(b) with his baton while § 87(2)(b) was on the ground. When § 87(2)(b) was placed in the police vehicle, the officers banged his head on the top of the car the same way officers had done to § 87(2)(b)

Photo array

- On October 3, 2008, § 87(2)(b) viewed the same photo array § 87(2)(b) viewed, but the officers were in a different order. § 87(2)(b) identified a filler as being on scene. She also identified PO Figueroa as an officer who hit § 87(2)(b), § 87(2)(b), and § 87(2)(b)

Attempts to Contact Additional Civilians

§ 87(2)(b) informed the investigation that § 87(2)(b) did not want to be involved in his CCRB complaint. The investigation sent two letters to § 87(2)(b) these letters were not returned. The investigation was unable to locate a phone number for § 87(2)(b)

§ 87(2)(b) stated that the third male who was stopped was § 87(2)(b) The stop-and-frisk report notes that the third male stopped was named § 87(2)(b) § 87(2)(b) § 87(2)(g) The investigation scheduled an interview with § 87(2)(b) but he missed his appointment without calling to cancel and was sent a missed appointment letter that same day. After missing this appointment, § 87(2)(b) did not return numerous calls to his residence.

§ 87(2)(b) was unable to provide the investigation with § 87(2)(b)'s contact information. The investigation was unable to find § 87(2)(b)'s address or phone number.

NYPD Statements:

Subject Officer: SERGEANT NICHOLAS VANDYKE

- Sgt. Vandyke is a white male, 5'8" tall, 208lbs, age § 87(2)(b) with brown hair and hazel eyes.
- On April 9, 2008, Sgt. Vandyke worked from 9:26 a.m. to 6:12 p.m., was assigned as the anti-crime supervisor, worked with PO Haber and PO Tiernan, dressed in plainclothes (jeans and a blue hoodie that said "Bushwick") and was assigned to a blue, unmarked vehicle.

Memo Book

At 5:14 p.m., stop at rear of § 87(2)(b) At 5:41 p.m., two under.

CCRB Testimony

On May 19, 2011, Sgt. Vandyke was interviewed at the CCRB (encl. 11A-G).

The morning of the incident Sgt. Vandyke and his team were advised by the community affairs officer, Damarus Franco, that people at the incident location had been complaining about narcotics use and narcotics sale at the location during the day. Later that day, Sgt. Vandyke received a call from PO Rubin and PO Figueroa reporting that they wanted to stop individuals who were inside the lobby of the building. The officers did not give any other information to Sgt. Vandyke, but Sgt. Vandyke was later told that there was a smell of marijuana inside the lobby building; Sgt. Vandyke did not remember which officer informed him of this. Sgt. Vandyke agreed that the officers should stop the individuals and Sgt. Vandyke, PO Tiernan and PO Haber responded to the location in order to back up PO Figueroa and PO Rubin.

Sgt. Vandyke, PO Tiernan and PO Haber approached the building from the rear and observed three Hispanic males, identified via investigation as § 87(2)(b), § 87(2)(b) and § 87(2)(b) walking from the rear of the building. The three males were being followed by PO Rubin and PO Figueroa. PO Rubin pointed to the three males to indicate to Sgt. Vandyke that these were the males who needed to be stopped. Sgt. Vandyke and his officers took out their shields and asked the males if they could ask them a couple questions. § 87(2)(b) and § 87(2)(b) stopped, but § 87(2)(b) kept walking.

PO Tiernan approached § 87(2)(b) and asked him to stop. In response, § 87(2)(b) pushed PO Tiernan. Because of this action, § 87(2)(b) was immediately under arrest. Sgt. Vandyke grabbed

§ 87(2)(b) and § 87(2)(b) pushed Sgt. Vandyke away. Sgt. Vandyke, PO Tiernan and § 87(2)(b) all fell to the ground and struggled with one another.

While he was on the ground, § 87(2)(b) placed his hands in front of his body, making Sgt. Vandyke suspect that he was secreting something underneath him. Sgt. Vandyke did not punch § 87(2)(b) or put a knee in his back. Sgt. Vandyke did not know what PO Tiernan's actions were. No officer threatened to taser or pepper spray § 87(2)(b). It took a couple seconds for the officers to get the handcuffs on § 87(2)(b).

While Sgt. Vandyke was dealing with § 87(2)(b) he saw PO Figueroa and PO Rubin talking to § 87(2)(b) and § 87(2)(b). Sgt. Vandyke did not see PO Rubin or PO Haber frisk or search the two males and he did not instruct the officers to do this.

After handcuffing § 87(2)(b) the officers picked him up. § 87(2)(b) started struggling and tried to run away from the officers. Sgt. Vandyke placed § 87(2)(b) into an unmarked vehicle. Later on, a patrol supervisor arrived and instructed the officers to place § 87(2)(b) inside a marked vehicle. Sgt. Vandyke did not know which officers drove this vehicle and did not witness § 87(2)(b) get inside this second vehicle. Sgt. Vandyke did not recall if § 87(2)(b) resisting getting inside the vehicle; no officer banged § 87(2)(b)'s head against the vehicle.

After Sgt. Vandyke placed § 87(2)(b) into the marked police vehicle, he turned around and saw that a large, hostile crowd had formed. Numerous civilians were fighting with officers. Sgt. Vandyke made a call for assistance. Sgt. Vandyke saw PO Figueroa struggling with § 87(2)(b) so he ran over to assist him. § 87(2)(b) punched PO Figueroa in the face and PO Figueroa grabbed § 87(2)(b). § 87(2)(b) and PO Figueroa started struggling with their arms, pushing back and forth. Sgt. Vandyke felt an individual grab him from behind and then felt someone else tackle the individual off of him. Sgt. Vandyke lost his shield while this was happening.

Sgt. Vandyke started struggling with § 87(2)(b). Sgt. Vandyke did not think any other officer assisted PO Figueroa in apprehending § 87(2)(b) besides Sgt. Vandyke. No officer struck § 87(2)(b) with handcuffs. § 87(2)(b) was handcuffed on the ground. Sgt. Vandyke and PO Figueroa never placed their feet on § 87(2)(b)'s neck or face; neither officer punched or kicked § 87(2)(b).

Sgt. Vandyke feared for his safety. Sgt. Vandyke never had to push any member of the crowd back. Sgt. Vandyke told members of the crowd to get back but he did not recall saying "get the fuck back." Sgt. Vandyke did hear profanity; he did hear "get the fuck back." No officer kicked any individual on the ground. Sgt. Vandyke did not know who § 87(2)(b) was and did not recall any individual who said he was disabled. Sgt. Vandyke never threatened to use force against any member of the crowd. Sgt. Vandyke did not see any officer push the crowd back with an asp or baton. Sgt. Vandyke did not see any officer use a chokehold or stand on any individual on scene.

Sgt. Vandyke did not see any officer pick any person up and throw them. He did not see any officer with his or her gun out; Sgt. Vandyke did not see a dog on scene. No officer refused to provide his name or shield number to any individual. The individuals in the crowd could have been arrested but Sgt. Vandyke did not inform them of this.

After the two arrests were made, the officers could not gain control over the crowd, so Sgt. Vandyke and other supervisors started evacuating police officers and the NYPD left the location. Sgt. Vandyke did not transport any individual back to the precinct.

At the precinct, PO Tiernan processed paperwork and PO Figueroa received treatment for his facial injuries. Sgt. Vandyke authorized a strip search for both arrestees. Sgt. Vandyke authorized a strip search for § 87(2)(b) because of the furtive movements § 87(2)(b) had conducted while being handcuffed.; specifically Sgt. Vandyke believed that § 87(2)(b) had secreted something illegal underneath his clothes.

§ 87(2)(b) was strip searched due to his violent behavior both on scene and at the stationhouse.

§ 87(2)(b) was abrasive at the stationhouse: he tried to pull away at the desk; he kicked at officers walking by and screamed profanities. When the officers tried to search § 87(2)(b) incident to arrest, he pulled away, causing Sgt. Vandyke to be suspicious of him. Sgt. Vandyke was not present for either strip search.

Sgt. Vandyke never interacted with the prisoners when they were in the cell, but he did hear them yelling profanities from the cells. Sgt. Vandyke observed that § 87(2)(b)'s face was puffy and red, so he called EMS, but § 87(2)(b) and § 87(2)(b) never complained of any injuries and both males refused medical attention at the precinct.

Subject Officer: OFFICER BRIAN TIERNAN

- PO Tiernan is a white male, 5'11" tall, 200lbs, § 87(2)(b) with black hair and blue eyes.
- On April 9, 2008, PO Tiernan worked from 9:30 a.m. to 6:05 p.m., was assigned to anti-crime, worked with PO Haber and Sgt. Vandyke, dressed in plainclothes and was assigned to an unmarked vehicle.

Memo Book

At 5:13 p.m., two under at § 87(2)(b)

CCRB Testimony

On May 18, 2011, PO Tiernan was interviewed at the CCRB (encl. 12A-E). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) kept trying to run away from the officers; specifically he kept falling to the ground and then lurching forward. At one point, § 87(2)(b) jumped up and lunched forward on his own accord into a fence. The officers never slammed § 87(2)(b) against a fence. A female, identified as § 87(2)(b) via investigation, approached and tried to calm § 87(2)(b) down. § 87(2)(b) finally complied by not trying to get away, but he was still deadweight when the officers tried to pick him up. PO Tiernan did not punch § 87(2)(b). No officer threatened to pepper spray or taser § 87(2)(b).

When PO Tiernan tried to place § 87(2)(b) inside the unmarked vehicle, § 87(2)(b) resisted, so PO Tiernan ran around to the other side to try to pull him inside. No officer pushed § 87(2)(b)'s head against the police vehicle.

PO Tiernan observed PO Rubin and PO Figueroa struggling with § 87(2)(b) who was face-down on the ground kicking his legs and his elbows jerking around. PO Tiernan conducted crowd control by approaching the crowd with his asp out, but PO Tiernan never pushed any member of the crowd back with his asp.

EMS came to the precinct and one of the arrestees, either § 87(2)(b) or § 87(2)(b) told the EMTs to "go fuck [themselves]." Both individuals refused medical attention.

Subject Officer: OFFICER MARTIN HABER

- *PO Haber is a white male, 5'10" tall, 182lbs, § 87(2)(b) with brown hair and blue eyes.*
- *On April 9, 2008, PO Haber worked from 9:30 a.m. to 6:05 p.m., was assigned to anti-crime, worked with PO Tiernan and Sgt. Vandyke, dressed in plainclothes and was assigned to an unmarked vehicle.*

Memo Book

At 5:03 p.m., 250 § 87(2)(b) § 87(2)(b) At 5:13 p.m., arrest of § 87(2)(b) and § 87(2)(b)

CCRB Testimony

On May 19, 2011, PO Haber was interviewed at the CCRB (encl. 13A-D). § 87(2)(g)

Once § 87(2)(b) was under arrest, PO Haber ran to get the car in order to place § 87(2)(b) inside. When PO Haber returned, he did not get out of the vehicle. PO Haber did not recall if § 87(2)(b) resisted getting inside the vehicle. PO Haber did recall anything else about the incident.

Subject Officer: OFFICER PETER RUBIN

- *PO Rubin is a Hispanic male, 5'7" tall, 195lbs, § 87(2)(b) with brown hair and brown eyes.*
- *On April 9, 2008, PO Rubin worked from 9:30 a.m. to 6:30 p.m., was assigned to anti-crime, worked with PO Figueroa, dressed in uniform and was assigned to an unmarked vehicle.*

Memo Book

At 5:00 p.m., at § 87(2)(b). At 5:03 p.m., stop-and-frisk report prepared. At 5:50 p.m., two under by PO Tiernan.

CCRB Testimony

On May 19, 2011, PO Rubin was interviewed at the CCRB (encl. 14A-E). § 87(2)(g)

PO Rubin and PO Figueroa observed § 87(2)(b), § 87(2)(b) and § 87(2)(b) in the vestibule of § 87(2)(b) for a couple minutes; it appeared as though the three males were talking. The males left the building and the officers followed them. When Sgt. Vandyke and PO Tiernan were arresting § 87(2)(b) PO Rubin spoke to § 87(2)(b) and § 87(2)(b) but he did not remember what was said. PO Rubin looked over the stop-and-frisk report, and he remembered that he smelled smoked marijuana on the three males. PO Rubin did not recall frisking § 87(2)(b) and § 87(2)(b) but he understood that this was noted on the stop-and-frisk report.

Once people in the housing complex came outside, PO Rubin and PO Figueroa extended their arms and walked towards people. PO Rubin did not push any person back. PO Rubin told members of the crowd to get back; he never told anyone, "Get the fuck back." PO Figueroa was in front of PO Rubin and § 87(2)(b) who was in the crowd, said something to PO Figueroa to the effect of, "Don't fucking touch my mother," and punched PO Figueroa in the face and in the arm. PO Rubin did not see anything happen between PO Figueroa and a female before this happened.

After assaulting PO Figueroa, § 87(2)(b) tried to run, but PO Rubin grabbed his left side and PO Figueroa grabbed his right side. PO Rubin and PO Figueroa did not punch or kick § 87(2)(b)

Either PO Rubin or PO Figueroa handcuffed § 87(2)(b). PO Rubin did not remember which officer it was or whose handcuffs were used. Neither officer used his handcuffs to strike § 87(2)(b). The officers never placed their feet on § 87(2)(b)'s neck or face.

PO Rubin did not recall conducting a strip search of § 87(2)(b) or § 87(2)(b) but he knew that he was in the command log as having conducted a strip search. PO Rubin did not remember why a strip search was authorized.

Subject Officer: OFFICER ANGEL FIGUEROA

- *PO Figueroa is a Hispanic male, 5'8" tall, 190lbs, § 87(2)(b) with brown hair and brown eyes.*
- *On April 9, 2008, PO Figueroa worked from 9:30 a.m. to 6:30 p.m., was assigned to anti-crime, worked with PO Rubin, dressed in uniform and was assigned to an unmarked vehicle.*

Memo Book

PO Figueroa lost his memo book.

CCRB Testimony

On May 19, 2011, PO Figueroa was interviewed at the CCRB (encl. 15A-F), § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Figueroa had to push numerous members of the crowd back because he thought that his safety was compromised. No person that PO Figueroa pushed back fell to the ground.

At the precinct, PO Figueroa saw § 87(2)(b) but he did not recall § 87(2)(b)'s demeanor or a conversation about § 87(2)(b)'s mother. PO Figueroa did not use profanity towards § 87(2)(b). PO Figueroa never had to retighten § 87(2)(b)'s handcuffs. PO Figueroa was treated for injuries which were sustained when § 87(2)(b) punched him in the face.

Witness Officers: OFFICER SONIA YI and OFFICER SAMANTHA REGAN

- *PO Yi is an Asian female, 5'4" tall, 150lbs, § 87(2)(b) with brown hair and brown eyes.*
- *PO Regan is a white female, 5'9" tall, 140lbs, § 87(2)(b) with blonde hair and blue eyes.*
- *On April 9, 2008, PO Yi worked from 3:00 p.m. to 11:35 p.m., was assigned to Sector EF, worked with PO Vaz, dressed in uniform and was assigned to a marked vehicle as the recorder.*
- *PO Regan was assigned to Sector C according to the roll call.*

Memo Book

PO Yi did not have any memo book entries regarding the incident. PO Regan was recently transferred to the Special Victim's Unit and was not able to obtain her memo book from the 83rd Precinct.

CCRB Testimony

On June 15 and July 6, 2011, PO Yi and PO Regan interviewed at the CCRB, respectively (encl. 16A-D and encl. 17A-B).

PO Yi and PO Regan did not recall the incident. Both officers were given a brief synopsis of the incident, including the main officers who were involved, but neither officer recalled the incident.

The officers were shown § 87(2)(b)'s arrest photo, photos of the area and arrest reports, but they did not recall the incident.

Officers not Interviewed

PO Dwyer, who was working on the anti-crime team during the incident, § 87(2)(b).
§ 87(2)(g)

Medical Records (encl. 18A-M)

- § 87(2)(b) was treated at the § 87(2)(b) on § 87(2)(b). § 87(2)(b) sustained a 2 cm laceration on his forehead.
- § 87(2)(b) was treated at the § 87(2)(b) on § 87(2)(b). § 87(2)(b) was diagnosed with bruising to her right knee and her left rib, an abrasion on her right arm, a sprain/strain of her right knee, and a possible fracture of the 9th rib.

NYPD Documents

§ 87(2)(b)'s Arrest

§ 87(2)(a) 160.50

Sprint (encl. 19A-E)

At 5:15p.m., anti-crime officers from the 83rd Precinct radioed for assistance at § 87(2)(b). Two sergeants, Sector E, and another anti-crime unit responded to the location. The aviation unit was called for a foot pursuit, but that was called off. A large crowd formed, and two people were placed under arrest. EMS was called to the 8³ Precinct stationhouse.

Stop-and-Frisk Reports (encl. 20A-G)

PO Tiernan, PO Rubin and PO Haber stopped § 87(2)(b), § 87(2)(b) and § 87(2)(b) on suspicion of a misdemeanor after observing him for two minutes. The circumstances leading to the stop are listed as actions indicative of casing victim or location, actions indicative of acting as a lookout, furtive movements, and being in the hallway of a housing location. Additional factors for the stop include that the area has a high incidence of reported offense, an ongoing investigation, and changing directions at the sight of officer. The report also notes that there was a smell of marijuana coming from § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) were frisked because of furtive movements; they were not searched. § 87(2)(b) was frisked for refusal to comply with an officer's directions; he was searched for fighting with the arresting officer.

Arrest Reports (encl. 21A-E)

- § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Medical treatment of prisoner report (encl. 22A)

- _____

This is the first CCRB complaint filed § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) (encl. 1F).

- PO Tiernan has been a member of the service for eight years and there is one substantiated CCRB allegation against him. In case #200411755, an abuse of authority allegation (refusal to process civilian complaint) was substantiated; he received instructions (encl. 1B).
- PO Haber has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. 1C-D).
- PO Rubin has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 1D).
- PO Figueroa has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 1E).
- Sgt. Vandyke has been a member of the service for ten years and there are no substantiated CCRB allegations against him (encl. 1A).

- Sgt. Vandyke, PO Rubin, PO Haber, PO Tiernan and PO Figueroa admitted to interacting with the victims of this complaint.
- § 87(2)(g)
-
-

§ 87(2)(b) alleged that PO Haber went inside § 87(2)(b) pockets. The only other witness of the officers' interaction with § 87(2)(b) and § 87(2)(b) was § 87(2)(b) who testified that the officers only frisked both males; they never entered any pockets. The stop-and-frisk report confirms this. § 87(2)(g).

_____.

§ 87(2)(b) alleged that she pushed PO Figueroa and in response, PO Figueroa kicked the back of her left leg. § 87(2)(g)

§ 87(2)(b) alleged that PO Tiernan told § 87(2)(b) to “shut the fuck up” when placing him under arrest. He also alleged that PO Tiernan told the crowd to “back the fuck up.” § 87(2)(b) alleged that PO Figueroa told § 87(2)(b) and § 87(2)(b) to “shut the fuck up” when they asked what was happening. § 87(2)(g)

§ 87(2)(b) alleged that PO Figueroa struck § 87(2)(b) with an asp § 87(2)(g) § 87(2)(b) alleged that an officer told § 87(2)(b) to stay back or else he would “hit [him] again.” § 87(2)(g)

§ 87(2)(b) alleged that an officer threw § 87(2)(b) s § 87(2)(b) daughter to the side of the yard. § 87(2)(g) § 87(2)(b) alleged that an officer hit § 87(2)(b) with his baton while § 87(2)(b) was on the ground. She also alleged that, when § 87(2)(b) was placed in the police vehicle, the officers banged his head on the top of the car the same way officers had done to § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that the officers told him that he did not need medical attention. The medical attention sheet shows that § 87(2)(b) refused medical attention § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that, when there was dog off a leash, two unidentified officers drew their guns and told civilians to grab the dog or else they would shoot it. § 87(2)(g)

§ 87(2)(b) alleged that she asked all the officers what their names and shields were while they were arresting § 87(2)(b). § 87(2)(b) however, testified that the officers pulled out their badges, showed them to the crowd and told people to back up when they were arresting § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Nicholas Vandyke supervised the stop of § 87(2)(b) and § 87(2)(b)

All parties agree that Sgt. Vandyke supervised the stop of § 87(2)(b), § 87(2)(b) and § 87(2)(b). Sgt. Vandyke testified that, earlier that day, the community affairs officer informed the officers that there was ongoing narcotics sale and use in the lobby of the location. Sgt. Vandyke’s officers informed him that they observed the three males in the lobby; they did not provide him with any other information. Sgt. Vandyke did not recall anything else suspicious about the males besides the fact that they were inside of a building where ongoing criminal activity had been reported.

The stop-and-frisk report notes that the officers stopped the three males on suspicion of a misdemeanor after observing them for two minutes. The circumstances leading to the stop are listed as actions indicative of casing victim or location, actions indicative of acting as a lookout,

furtive movements, and being in the hallway of a housing location. Additional factors for the stop include that the area has a high incidence of reported offense, an ongoing investigation, and changing directions at the sight of officer. The report also notes that there was a smell of marijuana coming from § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation B – Abuse of Authority: PO Peter Rubin frisked § 87(2)(b)

Allegation C – Abuse of Authority: PO Martin Haber frisked § 87(2)(b)

§ 87(2)(b) testified that PO Rubin and PO Haber frisked § 87(2)(b) and § 87(2)(b) respectively. The officers did not recall why the two individuals were frisked. The stop-and-frisk report notes that the two individuals were frisked for furtive movements. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation D – Force: PO Brian Tiernan used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Tiernan grabbed him by his left shoulder and tried to bring him to the ground. § 87(2)(b) responded by stiffening his body so that he would not go down. PO Tiernan responded by “slamming” § 87(2)(b) into a gate. PO Tiernan testified that § 87(2)(b) resisted the arrest by lurching forward; at one point, § 87(2)(b) lunched forward into a fence. All parties agree that § 87(2)(b) resisted the arrest and that a large, hostile crowd formed.

The NYPD Patrol Guide, section 203-11, states that officers should only use the amount of force necessary to overcome resistance. § 87(2)(b) refused medical attention at the precinct. The medical records from the following day indicate that § 87(2)(b) sustained a 2cm laceration to his forehead. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation E – Force: An officer used physical force against § 87(2)(b)

Allegation F – Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that after he was handcuffed, an officer he could not see punched § 87(2)(b) in the face while he was on the ground. Then, when § 87(2)(b) was being placed into the police vehicle, officers who § 87(2)(b) could not see “rammed” him against the police vehicle. At this time, § 87(2)(b) also heard an officer threaten to pepper spray and taser him if he did not get inside the police vehicle.

Sgt. Vandyke and PO Tiernan stated that § 87(2)(b) continued to resist after being in handcuffs, and that they struggled with him. However, they denied punching him, pushing his head into the police vehicle or threatening him with force. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation G – Force: PO Martin Haber used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Haber punched him in the face when he was getting placed into the police vehicle. He also alleged that, at the precinct, PO Haber pushed his head against a rail and a gate. PO Haber did not recall what happened. § 87(2)(g)

Allegation H – Force: PO Angel Figueroa used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Figueroa pushed her back causing her to fall to the ground. Once on the ground, PO Figueroa allegedly kicked § 87(2)(b) in her lower left ribs. PO Figueroa admitted to pushing numerous hostile members of the crowd back, but he denied that any member of the crowd fell down as a result of this. PO Figueroa denied kicking any individual on scene. § 87(2)(g)

§ 87(2)(g) § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) all alleged that PO Figueroa pushed § 87(2)(b) back, but they did not mention that he kicked her. § 87(2)(b) testified that § 87(2)(b) broke her rib by being thrown to the ground.

§ 87(2)(g)

Allegation I – Force: PO Angel Figueroa struck § 87(2)(b) with handcuffs.

Allegation J – Discourtesy: PO Angel Figueroa spoke obscenely to § 87(2)(b)

Allegation K – Force: PO Angel Figueroa used physical force against § 87(2)(b)

§ 87(2)(b) testified that PO Figueroa punched § 87(2)(b) repeatedly in his face with his handcuffs; § 87(2)(b) estimated that PO Figueroa hit him about the face for about twenty or thirty seconds with his handcuffs more than five times. After being in handcuffs, PO Figueroa allegedly kicked § 87(2)(b) in the head. § 87(2)(b) also alleged that, when PO Figueroa was trying to handcuff him, he stated, “I don’t want to hear that shit. Give me your fucking hands.” Then, at the precinct, PO Figueroa told § 87(2)(b) “I don’t give a fuck, and if your mother comes to the precinct, I’m going to lock her fucking ass up, too.”

All officers denied that PO Figueroa struck § 87(2)(b) with handcuffs or used profanity against him. § 87(2)(g)

§ 87(2)(b) did not allege that § 87(2)(b) was struck with handcuffs and instead testified that an officer used an asp and baton against him.

§ 87(2)(g)

Allegation L – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that an officer (who § 87(2)(b) did not see) placed his foot on the side of § 87(2)(b)'s head and pushed his face into the ground. Then another officer (who § 87(2)(b) could not see) punched and kicked § 87(2)(b) in the back while he was lying on his stomach. All officers denied conducting these actions. § 87(2)(g)

Allegation M – Force: PO Angel Figueroa used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Figueroa threw him into the air causing him to land on his buttocks. § 87(2)(g). All officers interviewed denied that § 87(2)(b) was thrown by PO Figueroa. § 87(2)(g)

Allegation N – Force: Officers used physical force against § 87(2)(b)

Allegation O – Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

Allegation P – Force: An officer used his baton against § 87(2)(b)

§ 87(2)(b) alleged that an officer picked him up and threw him on the ground when he did not get back fast enough. § 87(2)(b) § 87(2)(b) asked the officer why he did this and the officer responded, “Shut the fuck up before I smack you, too.” Then, a male officer took a baton and lifted § 87(2)(b) off the ground by placing the baton underneath § 87(2)(b)s chin. Then, two female officers stood on § 87(2)(b) with their boots on his neck. All officers denied these allegations.

§ 87(2)(g)

§ 87(2)(b) alleged that an officer struck § 87(2)(b) in the mouth with an nightstick; she did not allege that the nightstick struck him in his neck area.

§ 87(2)(g)

Allegation Q – Force: PO Angel Figueroa retightened § 87(2)(b)s handcuffs.

§ 87(2)(b) alleged that, when he was inside the cell, he asked PO Figueroa if he could take off his handcuffs. PO Figueroa allegedly responded by tightening § 87(2)(b)s handcuffs. PO Figueroa denied this. § 87(2)(g)

Allegation R – Abuse of Authority: Sgt. Nicholas Vandyke authorized a strip search for

§ 87(2)(b)

All parties agree that § 87(2)(b) was strip searched at the precinct. Sgt. Vandyke testified that he authorized the strip search based on that fact that § 87(2)(b) made furtive movements underneath his body when he was being handcuffed. § 87(2)(g) Sgt. Vandyke noted the authorization in the command log.

According to the NYPD Patrol Guide, section 208-05, a strip search will be utilized if the officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods.

§ 87(2)(g)

Team: _____

:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date